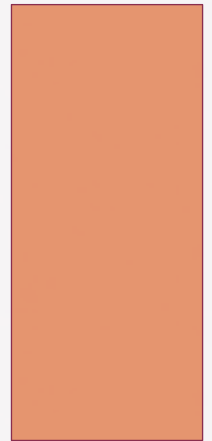


CHAPTER 4 STRUCTURE AND OPERATION OF INTERNATIONAL ORGANIZATIONS



SECTION ONE ADMINISTRATIVE BODIES OF INTERNATIONAL ORGANIZATIONS

第四章 国际组织的机构与运行

STAGES OF DEVELOPMENT OF INTERNATIONAL ORGANIZATIONS' ADMINISTRATIVE BODIES

- Stage I Mid-19th century
 - Supreme decision-making body and day-to-day administrative organ
- Stage II: Late 19th century
 - Council, Executive Board, specialized committees and Executive Committee emerged
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- Stage III · Early 20th century – present
 - Judicial organs for settling and handling disputes emerged

I. DELIBERATIVE AND DECISION-MAKING ORGANS OF INTERNATIONAL ORGANIZATIONS

- Deliberative and decision-making organs of international organizations:
- Usually termed “Assembly,” “Congress,” or “Plenary Meeting,”
- Composed of representatives sent by member states, they are the deliberative bodies for decision-making or the supreme authority of the organization.
- · Principal functions:
- Formulating policies and guidelines, examining budgets, admitting new members, electing the chief administrative officer, electing members of the executive organ, considering its reports, drafting and amending the constituent instrument, making recommendations or decisions on relevant matters, and exercising internal oversight, etc.

DELIBERATIVE AND DECISION-MAKING ORGANS OF INTERNATIONAL ORGANIZATIONS

- 1. World Bank: The supreme authority is composed of one Governor and one Alternate Governor appointed by each member state; they serve five-year terms and may be reappointed.
- 2. World Meteorological Organization: The supreme authority is the World Meteorological Congress, which meets once every four years and is attended by delegations from all member states.
- 3. International Labour Organization: The supreme authority is the International Labour Conference, held at least once a year and composed of government, worker, and employer delegates from each member state.
- 4. Shanghai Cooperation Organization: The supreme authority is the Council of Heads of State, which meets annually and is hosted in turn by each member state in accordance with the Russian alphabetical order of their country names.

- 1. European Union

(1) Its agenda-setting and guiding body is the European Council, which meets twice a year; the President of the European Council is elected for a term of two and a half years and may be re-elected once.

(2) Functions: provides strategic guidance to the Council on economic policy and on the Common Foreign and Security Policy.

- 2. United Nations

(1) The General Assembly, composed of all Member States, holds a regular session each year; every Member State has one vote in the Assembly.

(2) Functions: discusses any questions or matters within the scope of the Charter and may make recommendations to Member States or to the Security Council; receives and considers reports from the Security Council and other UN organs.

II. EXECUTIVE ORGANS OF INTERNATIONAL ORGANIZATIONS

- · Executive organs of international organizations:
- · Responsible for implementing the resolutions adopted by the deliberative and decision-making bodies,
- · Usually designated as Executive Board, Council, or Executive Commission.

- · Principal functions:
- Carrying out decisions of the supreme authority, handling matters within the organization's mandate, proposing recommendations, plans and work programs and putting them into effect.
- When the deliberative and decision-making organs are not in session, their powers are generally exercised by the executive organs.

- 1. United Nations – Security Council: the organ responsible for international peace and security; its resolutions are binding on all Member States.
- 2. World Bank – Executive Board: handles the Bank's day-to-day operations and exercises the powers delegated by the Board of Governors.
- 3. International Monetary Fund – Executive Board.
- 4. World Meteorological Organization – Executive Council: meets at least once a year to review the Organization's activities and implement the decisions of the World Meteorological Congress; it is the executive body between Congress sessions.
- 5. International Labour Organization – Governing Body: directs the work of the ILO when the International Labour Conference is not in session.
- 6. International Maritime Organization – Council: its main functions are to make recommendations and to exercise consultative and advisory powers.
- 7. European Union – European Commission: in the area of the Common Foreign and Security Policy, the principal executive body is the European Council.

II. JUDICIAL ORGANS OF INTERNATIONAL ORGANIZATIONS

- · Judicial organs of international organizations:
- · Specifically entrusted with adjudicating legal questions and settling international disputes through judicial means.
- · A special statute defines the court's jurisdiction, applicable law, and judicial procedure.
- · Judges are selected under strict conditions and procedures, normally nominated by member states and formally elected through a designated process.
- · Judges perform their functions in complete independence, hear cases impartially in accordance with the law, and may not act on behalf of any other authority.

- 1. League of Nations – Permanent Court of International Justice: the first global international judicial body; officially inaugurated in The Hague in February 1922; formally dissolved in 1946.
- 2. United Nations – International Court of Justice: established in 1946; the Court adjudicates disputes that states voluntarily submit to it in the exercise of their sovereignty; the General Assembly or the Security Council may request the Court's advisory opinion on any legal question.
- 3. European Union: reviews the legality of acts adopted by the European Parliament or the European Council, and of acts adopted by the European Council, the Commission, the European Central Bank, or the European Parliament that are intended to produce legal effects vis-à-vis third parties.
- 4. International Monetary Fund, International Labour Organization, etc. – Administrative Tribunals: legal remedies for international civil servants in labor and personnel disputes with their employers.

IV. ADMINISTRATIVE AND MANAGEMENT ORGANS OF INTERNATIONAL ORGANIZATIONS

- · Administrative and management organs of international organizations:
- · Permanent bodies within an international organization that provide services to other organs and carry out the policies and programs adopted by the principal organs.
- · Usually designated as the Secretariat.

- · Principal functions of the Secretariat:
- The core of modern international organizations' administrative and managerial work, encompassing finance, conference services, research, technical support, information, dispute mediation, and external representation of the organization.
- · Main tasks of the organ and its head: handling all daily administrative and managerial affairs of the organization, coordinating the activities of its permanent bodies, and furnishing them with every necessary service.

- 1. International Telegraph Union – International Bureau: the earliest international secretariat in the history of international organizations.
- 2. United Nations – Secretariat: composed of all international staff at UN Headquarters in New York and in offices worldwide; conducts the day-to-day work of the Organization; headed by the Secretary-General, appointed by the General Assembly on the recommendation of the Security Council for a five-year term, renewable once.
- 3. European Union – Secretariat: provides advice on procedural matters, prepares minutes and reports, and handles translation and transmission of Council texts.
- 4. Shanghai Cooperation Organization – Secretariat: supplies administrative, technical, and information support for activities within the Organization's framework.
- 5. World Bank – Administrative structure: consists of the President, several Vice Presidents, Directors, Department Heads, and staff.
- 6. World Meteorological Organization – Secretariat: headed by a Secretary-General appointed by the World Meteorological Congress; handles routine international meteorological affairs, with a number of functional divisions under it responsible for specific tasks.

IV. SPECIALIZED AND SUBSIDIARY ORGANS OF INTERNATIONAL ORGANIZATIONS

- Specialized and subsidiary organs of international organizations:
 - A specialized body
 - Technical experts participate in their personal capacity
- Composition:
 - May be composed of all member states or only some;
 - May consist of governmental representatives or individual experts;
 - May be regional, permanent, or temporary;
 - May deliberate on a specific professional field or be charged with handling a particular technical issue.

SECTION TWO OPERATING MECHANISMS OF INTERNATIONAL ORGANIZATIONS

第四章 国际组织的机构与运行

I. DECISION-MAKING MECHANISMS OF INTERNATIONAL ORGANIZATIONS

- · The decision-making mechanism is the core of an international organization's decision-making process.
- · The decision-making mechanism employed by an international organization is determined by its constituent instrument.
- · Decisions in international organizations are usually taken by voting.
- · The decision-making mechanisms of international organizations essentially revolve around two fundamental issues:
 - · Allocation of voting rights
 - · Concentration of voting power

(1) ALLOCATION OF VOTING RIGHTS

- · The one-state-one-vote system grants every member state equal voting power, regardless of its status or role,
 - e.g., the voting procedure of the United Nations General Assembly.
- · Weighted voting distributes different numbers of votes or unequal voting weights among member states according to specified criteria and principles.
- Specifically: based on factors such as a member's responsibility, contribution, or stake in the organization, unequal numbers of votes or dissimilar voting values are assigned, giving members that possess certain advantages a larger voting weight—i.e., weighted voting rights.
 - e.g., the voting mechanisms of the World Bank, the International Monetary Fund, and within the European Union.

(2) CONCENTRATION OF VOTING POWER

- 1. Majority voting
 - One country, one vote: each member state has an equal vote; resolutions require the assent of a majority of members.
 - (1) Simple majority: more than half of the votes cast suffices for adoption.
 - (2) Qualified majority: adoption requires a specified proportion—e.g., a two-thirds majority.
 - (3) Majority plus specified members: in addition to the required number of votes, the affirmative votes of designated member states are necessary for adoption.
- 2. Consensus
 - On a draft resolution under discussion, members engage in extensive consultations. If no formal objection emerges on the essential points, the text is deemed adopted by consensus without a formal vote. Voting is used only when consensus cannot be reached.
- 3. Minority veto
 - Applied in the UN Security Council: under the veto power of permanent members, any non-procedural matter fails if a single permanent member casts a negative vote, even if the other fourteen members vote in favor.

II. EXECUTIVE PROCEDURES OF INTERNATIONAL ORGANIZATIONS

1. Convening Meetings

- Regular sessions: Some organs of an international organization are “bodies in continuous function” and must be able to meet without delay whenever necessary.
- Periodic sessions: Certain organs—especially those composed of representatives of all member states—normally operate by meeting at fixed yearly intervals; the length of the interval is determined by the practical requirements of their functions.
- Special sessions: For exceptional circumstances, some organs may convene emergency or special sessions outside their regular schedule to address urgent matters or prevent a situation from deteriorating.

II. EXECUTIVE PROCEDURES OF INTERNATIONAL ORGANIZATIONS

- 2. Admission and Withdrawal of Member States
- Admission: the process whereby a state that is not yet a member is accepted as a member, thereby increasing the number of parties to the organization's constitutive treaty and enabling the organization to pursue its purposes more effectively.
- Voluntary membership: a system under which sovereign states possess an absolute right and freedom to join or to refuse participation in any international organization.
- Compulsory (or universal) membership: a counter-concept to voluntary membership, expressing the preference that as many states as possible should participate in the organization.
- Restricted membership: a system in which prospective members are screened in advance so that the organization can act in unison and with solidarity; the European Union follows this approach.
- Withdrawal: "A Member of the United Nations which has persistently violated the Principles contained in the present Charter may be expelled from the Organization by the General Assembly upon the recommendation of the Security Council." (Article 6, Charter of the United Nations)

II. EXECUTIVE PROCEDURES OF INTERNATIONAL ORGANIZATIONS

3. Implementation of Specific Resolutions

- Implementation is normally carried out by the administrative department or secretariat established by the international organization.
- The Secretariat of the United Nations provides services to all UN organs and implements the policies and guidelines adopted by them.
- The Secretariat's tasks include organizing international conferences on global issues, surveying world economic and social trends and problems, and drafting reports on human rights, disarmament, and economic and social development, among others.

III. PERSONNEL SYSTEM OF INTERNATIONAL ORGANIZATIONS

- · Broad sense:
 - Encompasses all concrete regulations on staff selection, recruitment, training, salaries, benefits, supervision, retirement and pensions.
- · Narrow sense:
 - Refers to the system of appointment and management of public-service personnel.
- International civil servants:
 - All categories of staff employed by the United Nations and other international organizations; they work under the direction of the organization's chief administrative officer and serve all member states.
- International civil servants are generally recruited from among the nationals of member states in accordance with the relevant rules.
- They do not represent their home countries; they are international civil servants, responsible to the Secretary-General (or equivalent head) of the organization and serve the organization as a whole.

CLASSIFICATION OF INTERNATIONAL CIVIL SERVANTS (UN)

- Senior Officials – D level (Director)
 - Divided into D-1 and D-2; require many years of extensive professional experience, usually aged 50 or above.
- Professional Officers – P level (Professional)
 - Divided into five grades: P-1 to P-5.
- General Service Staff – G level (General Service)
 - Spanning G-1 to G-7, mainly secretarial, service and security personnel.
 - · G-level staff who wish to transfer to the P level must pass the annual internal United Nations examination.

IV. FINANCIAL MANAGEMENT OF INTERNATIONAL ORGANIZATIONS

- Sources of income
 - Assessed contributions paid by member states according to legally agreed scales (the principal source of revenue)
 - Voluntary donations from wealthy states or individuals
 - Tax revenue and income-generating activities
- United Nations: membership assessments and voluntary contributions
- International Monetary Fund: quotas subscribed by member states

SECTION III
FACTORS AFFECTING THE OPERATION OF
INTERNATIONAL ORGANIZATIONS

第四章 国际组织的机构与运行

I. INTERNAL FACTORS INFLUENCING THE OPERATION OF INTERNATIONAL ORGANIZATIONS

- Factors inherent to the organization itself
 - · Responsibility of the organization: its legal and political accountability
 - · Enforcement power of the organization in dispute settlement
 - · Coordination and policy coherence among different internal departments
 - · Transparency of the organization
 - · Legitimacy and democracy of the organization's internal governance
- Member-state factors
 - · Member states' pursuit of their own national interests also affects the operation of the organization.

II. EXTERNAL FACTORS INFLUENCING THE OPERATION OF INTERNATIONAL ORGANIZATIONS (GLOBALIZATION)

Impact of globalization on international organizations

- 1. Expansion of the scope of activities of international organizations
- 2. Change in the functions and roles of international organizations
- International organizations have become rule-makers for the international community, adopting basic instruments and concluding international conventions to establish global laws, rules and institutions.
- 3. Creation of conditions for the rise of non-state actors (e.g., non-governmental international organizations, transnational corporations, etc.) on the international stage, turning them into important driving forces of globalization.

II. EXTERNAL FACTORS INFLUENCING THE OPERATION OF INTERNATIONAL ORGANIZATIONS (GLOBALIZATION)

- New demands placed on international organizations by the development of globalization
- 1. New requirements regarding organizational structures, democratic mechanisms, efficiency, and the strengthening of relations between intergovernmental and non-governmental international organizations.
- 2. Objectively, globalization demands that the World Trade Organization shoulder an inescapable responsibility in advancing trade globalization, narrowing the North–South gap, and ensuring that all member states benefit fairly.

II. EXTERNAL FACTORS INFLUENCING THE OPERATION OF INTERNATIONAL ORGANIZATIONS (TECHNOLOGICAL DEVELOPMENT)

- Impact of technological development on international organizations
- · Technological advances objectively strengthen the scientific and technological functions of international organizations, overcoming geographical constraints and promoting international cooperation in science and technology among countries worldwide.
- · Technological development encourages international organizations to formulate and implement internal policies that serve the overall interests of humanity.
- · The progress of technology objectively requires international organizations to build networks for scientific and technological development.
- · The evolution of technology also presents international organizations with new functions, target audiences, and issues to address.◦

III. OTHER FACTORS AFFECTING THE OPERATION OF INTERNATIONAL ORGANIZATIONS

1. International crises impact the functioning of international organizations

Examples include international financial crises, public-health emergencies, environmental crises, resource shortages, and terrorism.

2. Transnational corporations influence the operation of international organizations

This influence is especially evident in their impact on non-governmental international organizations.

3. Theories advanced by scholars of international relations and international law exert a major influence on the birth, evolution, and daily operation of international organizations

The most prominent among these are idealist and neo-liberal theories.

REVIEW QUESTIONS

1. What are the principal organs established by international organizations?
2. What types of voting systems exist in international organizations, and what are their characteristics?
3. What factors influence the functioning of international organizations?
4. Using the United Nations as an example, describe its institutional structure and operational mechanisms, and analyze the internal and external factors that affect its performance.